

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
Writ Petition No.66442-Q/2025.

Hafiz Muhammad Bilal Shahid. **Versus** The State and another.

S.No. of order/ proceeding.	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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14.01.2026. M/s Zaka ur Rehman Awan and Ch. Moien Akhtar, Advocates for the petitioner.
Hafiz Aslam Naseer, Advocate for respondents.
Raja Abdul Jabbar Khan, Assistant Attorney General for Pakistan alongwith Neha Shakeel Inspector/FIA with police record.

Through this Constitutional Petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, the petitioner has sought the quashment of FIR No.C-85/2025, dated 02.09.2025, registered with Police Station FIA/Corporate Crime Circle, Lahore for offences under Section 66/66-A/67 of Copy Right Ordinance, 1962 registered under the authorship of respondent No.2 (Javed Iqbal, Senior Field Manager, Discovery Security Consultants).

2. Respondent No.2 (complainant of the impugned FIR) happened to be Operation Manager, Discovery Pakistan Private Limited and representative of “Atlas Honda Company Pakistan”. He averred in the impugned FIR that he was assigned the duty of initiating the proceedings against the persons involved in the manufacturing, sale and distribution of fake products of Atlus Honda company. Added that he came to know that certain persons namely (1) Hafiz Muhammad Bilal Shahid-petitioner (2) Methew Javed son of Javed (3)

Asad Ali son of Khalid Mehmood were preparing fake engine oil, sticker, bottle caps, bottles etc. of Atlas Honda Company and selling into the market. They were damaging the goodwill of the company.

3. Learned counsel for the petitioner mainly focused on the points that the matter was amenable to the jurisdiction of Intellectual Property Organization under Sections 13(xvii)(xix)(xx) and 39 Intellectual Property Organization of Pakistan Act, 2012; Federal Investigation Agency cannot entertain any complaint relating to dispute between private parties regarding infringement of copyright, nor can register the F.I.R.; added that jurisdiction of the F.I.A. is attracted only if offence is included in the schedule of Federal Investigation Agency Act, 1974 and the offence is committed in connection with the Federal Government.

4. Conversely, the learned Assistant Attorney General for Pakistan disputed the said contentions vehemently and rigorously on multiple grounds. He further added that since certain offences under Pakistan Penal Code are also attracted from the prima facie averments of the contents of the impugned F.I.R., as such lodging of the FIR and consequent investigation are within the four corners of law.

5. Arguments heard. File perused.

6. The parliament has enacted IPO-Pakistan Act (XXII of 2012) to establish Intellectual Propoerty Organization of Pakistan (the “Organization”) to provide for institutional arrangement in the State setup for taking up exclusively and comprehensively all subjects and matters relating to intellectual property rights in an integrated manner and for matters connected therewith

or incidental thereto Clause (g) of Section 2 of the IPO-Pakistan Act, 2012 states that “intellectual property” includes a trademark, patent, industrial design, layout-design (topographies) of integrated circuits, copyrights and related rights and all other ancillary rights.

7. IPO-Pakistan Act, 2012 is a special law and Section 39 thereof is *non obstante* clause and expressly states that it shall have effect notwithstanding anything contained in any other law for the time being in force. Section 13 describes the powers and functions of the Organization. Clause (xix) and (xx) thereof are relevant for our present purposes which are reproduced below for ready reference.

13. Powers and functions of the Organization---- *The Powers and functions of the Organization shall be to-*

(xix) initiate and conduct inquiries, investigations and proceedings related to offences in the prescribed manner;

(xx) refer matters and complaints, related to offenses under the laws specified in the Schedule, to the concerned law enforcement agencies and authorities as may be necessary for the purpose of this Act.

8. Section 13 (xix) read with Section 39 confers exclusive jurisdiction on the Organization to initiate and conduct inquiries, investigations and proceedings relating to offences under the laws specified in the Schedule. Offences relating to trademarks, copyright, patents, designs and certain allied/ancillary offences under the Pakistan Penal Code have been mentioned in the schedule. Thus, any person alleging infringement of his copyright must approach the Organization. Then, under Section 13 (xx) the latter (Organization) would refer his

complaint to the concerned law enforcement agency or authority. It is thus clear that the FIA cannot entertain any complaint directly and register the FIR. This has a purpose. The organization is a bulwark against frivolous complaints and undue harassment. It is a specialized body which has the expertise and the requisite data to verify whether there is actually a case of infringement of intellectual property rights under the applicable law.

There is no cavil to the proposition that when law requires a thing to be done in some specific manner, that thing must be done in that manner and not otherwise.

9. The organization is required to exercise its powers and functions under Section 13 (xix) of the Copyright Act in the manner prescribed by the Rules framed under Section 34 thereof. However, it has been observed that the requisite rules have not yet been framed. Non framing of the rules shall not make the enactment unworkable. It has been well-settled by superior Courts that even in a case where the statute provides certain things to be done subject to the rules, any action taken without framing the rules would not render any action invalid. If a statute is workable even without framing of the rules, the same has to be given effect. The law itself except in certain situations does not envisage vacuum. If any reference in this regard is required that may be had from “Orisa State Prevention and Control of Pollution Board Vs. Messrs Orient Paper Mills and another” (AIR 2003 SC 1966) and “Jantia Hill Truck Owners Association v Shailang Area Coal Dealer and Truck owner Associations and others” [(2009) 8 SCC 492].

10. Another moot point involved in the case is regarding the jurisdiction of FIA in respect of the offences under the Copyright Ordinance S.R.O. No.32(1)/2005 dated 14.04.2005 by way of entry No.26 includes the offences punishable under the copy right ordinance in the schedule to F.I.A. Act. FIA is a federal force constituted under the Federal Investigating Agency Act, 1974 whose preamble reads as under:-

“Where it is expedient to provide for the constitution of a Federal Investigation Agency for the investigation of certain offences committed in connection with the matters concerning the Federal Government, and for matters connected therewith”

Preamble is part of the statue though not its operative part. However, it provides a useful guide to find out the legislative intent. Preamble of a statue is a good means to find out the meanings of the statue as it is a key to open the understanding thereof. Although preamble does not control the main enactment, it certainly gives an inkling of the intention of the legislature and as to the policies of the Act. The concept relating to the policies of the Act is of paramount importance and all interpretations must be done in accordance with the policies and intention of the legislature found therein.

11. The word “concerning” used in preamble of the FIA Act is of fundamental importance. It has a wide connotation and any matter which is of some interest or importance for the Federal Government would fall within the ambit thereof. Section 3 of the FIA Act provides for the constitution of the Federal Investigation Agency and describes its jurisdiction. It enacts:

3. *Constitution of the Agency. ---- (1) Notwithstanding anything contained in any other law for the time being in force, the Federal Government may constitute an Agency to be called the Federal Investigation Agency for inquiry into and investigation of the offences specified in the Schedule, including an attempt or conspiracy to commit and abetment of any such offence*

2. *The Agency shall consist of a Director-General to be appointed by the Federal Government and such number of other officers as the Federal Government may, from time to time, appoint to be members of the Agency.*

12. A plain reading of Section 3, supra indicates that the FIA is empowered to inquire into or investigate the offences specified in the Schedule to the FIA Act (which the Federal Government can amend by a notification in the official Gazette under Section 6). Albeit the language of Section 3 and the Schedule is quite clear. There is a consensus of judicial opinion that the FIR does not have jurisdiction in the matters between private individuals and that there must be some nexus between the offences complained of and the Federal Government for conferment of the jurisdiction to FIA to inquire into and investigate the matter.

13. It was held by august Supreme Court of Pakistan time and again that jurisdiction of FIA is attracted only if two conditions are satisfied; first the offence is included in the Schedule to FIA Act and secondly the offence must be in connection with the matters concerning the Federal Government.

14. In the case in hand dispute was between two private parties and it was claimed in the impugned FIR that counterfeit products resembling those of “Atlas Honda” are being manufactured, packed and distributed/sold by the petitioner/accused (Hafiz Bilal).

Respondent No.2 was representative of a private firm known as “Honda Atlas”. Said firm was doing business in Pakistan privately and no government work was involved, therefore, I feel no hesitation in holding that FIA has no jurisdiction in respect of infringement of copyright between the private parties and the Tribunal created under the Intellectual Property Organization Act, 2012 has the exclusive jurisdiction to try the offences with respect to Intellectual Property Laws. Cognizance taken by FIA is illegal, unlawful and beyond their jurisdiction.

15. Nutshell of the above critical analysis is that the impugned FIR is without any lawful authority. I therefore, accept the present petition and quash the impugned FIR accordingly, however, respondent No.2 (complainant) may proceed against the petitioner and his co-accused afresh in accordance with the provisions of Intellectual Property Organization Act, 2012.

(TANVEER AHMAD SHEIKH)
JUDGE

APPROVED FOR REPORTING.

JUDGE